

PLJ 2021 Lahore (Note) 111

Present: ABID AZIZ SHEIKH, J.

DEPUTY MANAGER OPERATIONS--Petitioner

versus

**ADVISORY BOARD, GOVERNMENT OF THE PUNJAB through Chairman and 2
others--Respondents**

W.P. No. 34242 of 2016, decided on 1.11.2016.

Electricity Act, 1910 (IX of 1910)--

---S. 26-A--Constitution of Pakistan, 1973, Art. 199--Issuance of detection bill--Slowness in electricity meter--Appeal--Allowed--Challenge to--Advisory Board came to conclusion that meter became slow in June, 2009 and July, 2009--Petitioner department was accordingly allowed to charge detection bill for June and July, 2009--Findings of Advisory Board are based on record, previous data and trend of electricity consumed by Respondent No. 3--Counsel for petitioner is not in a position to point out any misreading or non-reading of record or to deny above data recorded by Advisory Board--No illegality or infirmity is found in impugned order--High Court in constitutional jurisdiction can only interfere if there is any patent illegality or jurisdictional defect in impugned orders but cannot reevaluate findings of fact which are otherwise based on- record and data--Petition dismissed. [Para 4, 5 & 6] A, B & C

Pir Khaliq Nawaz Shah, Advocate for Petitioner.

Date of hearing: 1.11.2016.

ORDER

Through this Constitutional Petition, petitioner has assailed order dated 15.3.2016 passed by Electric Inspector (Respondent No. 2) and order dated 19.5.2016 passed by the Advisory Board (Respondent No. 1).

2. Learned counsel for the petitioner submits that Respondent No. 3 was issued detection bill for Rs. 822449/-for the months of May, 2009 to July, 2009 on the basis of 33% slowness in the electricity meter. Submits that Respondent No. 3 challenged the aforesaid detection bill before electric inspector where it was held that meter was slow after August, 2009, therefore, demand for the period from May, 2009 to July, 2009 is void. Submits that in appeal by the petitioner, the Advisory Board held that meter became slow in the month of June, 2009, therefore, petitioner department was allowed to charge detection bill from June, 2009 to July, 2009 but detection bill for month of May, 2009 was declined. Learned counsel argued that aforesaid finding of the Advisory Board is not sustainable as meter was 33% slow from the month of May, 2009.

3. I have heard the arguments of learned counsel for the petitioner and perused the record at limine stage.

4. Perusal of impugned order dated 19.5.2016 shows that Advisory Board went through the record, data and found that MDI recorded in May, 2009 was 300 KWh which was higher than MDI recorded in May, 2008 and May, 2010. Further, 300 KWh recorded in May, 2009 is higher than KWh recorded in May, 2007 and May, 2010 and also more than KW recorded in April, 2009. It was in these circumstances that Advisory Board concluded that meter was not defective in the month of May, 2009. The Advisory Board also recorded that in June, 2009, MDI was less than MDI recorded in the month of May, 2009 and same was also less than MDI recorded in June, 2008 and June, 2010 and same was position of KWh recorded in July, 2009 which was less than KWh recorded in July, 2008 and July, 2010. It was on the basis of above data, the Advisory Board came to the conclusion that meter became slow in June, 2009 and July, 2009. The petitioner department was accordingly allowed to charge detection bill for June and July, 2009.

5. The above findings of the Advisory Board are based on record, previous data and trend of electricity consumed by Respondent No. 3. Learned counsel for the petitioner is not in a position to point out any misreading or non-reading of record or to deny the above data recorded by the Advisory Board. In view of above, no illegality or infirmity is found in the impugned order.

6. Even otherwise, this Court in constitutional jurisdiction can only interfere if there is any patent illegality or jurisdictional defect in impugned orders but cannot reevaluate the findings of fact which are otherwise based on record and data.

7. Accordingly, this petition is dismissed *in limine*.

(Y.A.) Petition dismissed